

Employment Contract

Terms of employment for practitioners employed by Vantage Meridian and placed on client engagements

This contract sets out the terms on which Vantage Meridian employs you and places you on the client engagements it wins. It is the employee counterpart to the Vantage Meridian Independent Contractor Agreement: practitioners who contract through their own company sign that document, practitioners who join as employees sign this one. Each placement is recorded in an Engagement Schedule (Schedule 2) which forms part of this contract.

Parties and details

Item 1 – Employer	Lavelle Pty Ltd (ACN 651 199 414) trading as Vantage Meridian, ABN 27 651 199 414, of Coorparoo, Queensland 4151 (“Vantage Meridian” or “the Company”)
Item 2 – Employee	Name: _____ Address: _____ Email: _____ Phone: _____
Item 3 – Position	_____
Item 4 – Employment type	Ongoing / Fixed term (delete one). If fixed term, the end date in Item 5 applies and clause 2.3 must be completed.
Item 5 – Commencement	Start date: ____ / ____ / ____ End date (fixed term only): ____ / ____ / ____
Item 6 – Ordinary hours	38 hours per week, worked Monday to Friday unless an Engagement Schedule specifies otherwise, plus reasonable additional hours
Item 7 – Location	Brisbane, Queensland and the client location recorded in each Engagement Schedule
Item 8 – Remuneration	Annual salary: \$ _____ gross, plus superannuation at the rate required by law
Item 9 – Probation	6 months from the start date in Item 5
Item 10 – Governing state	Queensland

Where a term of this contract is less favourable to you than the National Employment Standards or any modern award that covers your employment, the more favourable term applies and this contract is read accordingly.

Background

- A. Vantage Meridian provides senior project delivery, procurement governance and enterprise technology transformation to government and enterprise clients, led by its director and principal.
- B. Vantage Meridian wins engagements through competitive tender and delivers them with a principal-led team. It resources those engagements either by subcontracting to practitioners who trade through their own companies, or by employing practitioners directly.
- C. Vantage Meridian has agreed to employ you on the terms set out in this contract and you have agreed to accept that employment.

1. Definitions

- 1.1 In this contract: **Client** means a client of Vantage Meridian to which you are assigned; **Confidential Information** means information of Vantage Meridian or a Client that is not public, including client lists, pricing, rates, tender material, methodologies, source code, data and anything marked or reasonably understood to be confidential; **Engagement Schedule** means a schedule in the form of Schedule 2 recording a placement; **NES** means the National Employment Standards in the Fair Work Act 2009 (Cth); **Position Description** means the description of your role at Schedule 1.

2. Form of employment

- 2.1 You are employed by Vantage Meridian on the basis stated in Item 4, in the position stated in Item 3, from the start date in Item 5. Your employment is continuous from that date and prior service with any Client or agency does not count as service with Vantage Meridian.
- 2.2 If Item 4 records ongoing employment, your employment continues until either party ends it under clause 20.
- 2.3 If Item 4 records fixed term employment, your employment ends on the end date in Item 5 without further notice. A fixed term contract may not exceed 2 years including any extension and may be extended once, unless an exception in section 333E of the Fair Work Act 2009 (Cth) applies. The exception Vantage Meridian relies on for this contract is:
[TO BE SETTLED WITH A LAWYER] state the section 333E exception relied on, for example specialised skills for a specific task, government funding for more than 2 years with renewal unlikely, or earnings above the high income threshold in the first year of the contract. Getting this wrong voids the end date and the employment continues as ongoing employment.
- 2.4 Vantage Meridian is not obliged to offer you further employment after the end date of a fixed term contract and you are not obliged to accept any offer.
- 2.5 Your first 6 months are a probation period. During probation either party may end the employment by giving 1 week's notice in writing or, at Vantage Meridian's election, payment in lieu.

3. Position and duties

- 3.1 Your initial duties are set out in the Position Description at Schedule 1 and in each Engagement Schedule.

- 3.2 You must perform your duties with care and competence, to the best of your skill and ability, and follow the lawful and reasonable directions of Vantage Meridian and of the Client to whom you are assigned.
- 3.3 Vantage Meridian may vary your duties, reporting line or work location within the scope of your skills, training and classification. If your position changes, the terms of this contract continue to apply unless varied in writing.
- 3.4 You must devote your working time and attention to the business of Vantage Meridian and its Clients.

4. Client engagements and placement

- 4.1 Vantage Meridian may assign you to a Client engagement. Each assignment is recorded in an Engagement Schedule signed by both parties, recording the Client, role, location, reporting manager, term, hours and any Client conditions.
- 4.2 An Engagement Schedule forms part of this contract for the period it covers. It does not create any contract between you and the Client and it does not alter your employment with Vantage Meridian, which continues between assignments.
- 4.3 Your start on an assignment may be conditional on Client background checks, security clearances or inductions. You must cooperate with those checks and advise Vantage Meridian promptly if any of them cannot be completed.
- 4.4 If an assignment ends for any reason, Vantage Meridian may assign you to other work, direct you to perform other duties or, where no suitable work is available, deal with the position under clause 20.

5. Hours of work

- 5.1 Your ordinary hours are those stated in Item 6, being an average of 38 hours per week, plus such reasonable additional hours as are necessary to perform your duties.
- 5.2 Client engagements set the span of hours in practice. You must record all time worked in the timesheet system nominated for the assignment and submit each weekly timesheet for Client approval by 5.00pm Friday, or as the Engagement Schedule specifies. Accurate timesheets are a condition of Vantage Meridian being paid by the Client and are a requirement of your employment.
- 5.3 You must not work additional hours that a Client has not approved without first obtaining Vantage Meridian's agreement.

6. Remuneration and superannuation

- 6.1 Vantage Meridian will pay you the annual salary in Item 8, in arrears, by electronic transfer to the account you nominate. Pay is monthly, on the last business day of each month, unless Vantage Meridian notifies you of a different cycle.
- 6.2 Vantage Meridian will deduct PAYG withholding and any other amount it is required or authorised by law to deduct.
- 6.3 Vantage Meridian will make superannuation contributions on your behalf at the rate required by the Superannuation Guarantee (Administration) Act 1992 (Cth), currently 12 per cent of qualifying earnings, up to the maximum contribution base. From 1 July 2026

contributions are made on the same day as your salary is paid. You may choose your fund; if you do not, Vantage Meridian will use your stapled fund or its default fund.

- 6.4 Your salary is reviewed annually. A review does not guarantee an increase.
- 6.5 Your salary and the terms of this contract are confidential. You must not disclose them to Client staff, to other practitioners in the Vantage Meridian network or to any other person, except to obtain legal or financial advice or where the law requires disclosure.

7. Set-off

- 7.1 Your salary is intended to compensate you for all hours worked and to satisfy and be set off against any entitlement arising under the NES or any modern award that covers your employment, including minimum rates, overtime, penalty rates, loadings and allowances.

[TO BE SETTLED WITH A LAWYER] the drafting of clause 7.1 and its relationship to clause 8 needs legal review. A set-off clause is only effective if it is clear about which entitlements the salary absorbs and if the salary in fact covers them in each pay period. An annualised salary arrangement under a modern award carries its own record keeping and reconciliation obligations.

8. Award coverage

- 8.1 The Professional Employees Award 2020 (MA000065) covers professional information technology duties unless the role is wholly or principally managerial. Where that award or any other modern award covers your employment, its terms apply to the extent they are more favourable than this contract.
- 8.2 Since September 2023 the Professional Employees Award has provided for payment or time off in lieu for hours worked beyond 38 in a week, and penalties for work outside the ordinary span and on Sundays and public holidays, with associated record keeping. Those provisions do not apply where you are paid at least 25 per cent above the relevant classification minimum.

[TO BE SETTLED WITH A LAWYER] confirm award coverage for this specific role before the contract is issued, and confirm whether the salary in Item 8 clears the 25 per cent margin that removes the overtime and penalty provisions. Coverage is decided role by role, not once for the whole team.

9. Leave

- 9.1 You are entitled to leave in accordance with the NES, being 4 weeks paid annual leave for each year of service, 10 days paid personal or carer's leave for each year of service, 2 days compassionate leave per occasion, 10 days paid family and domestic violence leave in each 12 month period, unpaid parental leave and community service leave, and paid public holidays in the place where you work.
- 9.2 Long service leave is provided under the Industrial Relations Act 2016 (Qld).
- 9.3 Annual leave must be applied for in advance and approved by Vantage Meridian. Approval takes account of Client commitments and may be refused only on reasonable business grounds. You must give Vantage Meridian as much notice as practicable of leave that falls during a Client engagement.

- 9.4 You must notify Vantage Meridian and the Client as early as possible on any day you cannot attend work and provide evidence that would satisfy a reasonable person for any absence of more than 2 consecutive days or where Vantage Meridian reasonably requests it.
- 9.5 Vantage Meridian may direct you to take accrued annual leave where the direction is reasonable, including during a shutdown or where you have accrued more than 8 weeks.

10. Overpayment

- 10.1 If Vantage Meridian overpays you, you authorise it to recover the overpayment from any amount payable to you, after telling you the amount and the reason and giving you a reasonable opportunity to discuss it. This clause is principally for your benefit, in that it allows the overpayment to be corrected without separate recovery action.

11. Policies and conduct

- 11.1 You must comply with Vantage Meridian's policies and codes of conduct as issued and amended from time to time, and with the policies, codes of conduct and security requirements of any Client to whose site or systems you are given access.
- 11.2 Policies do not form part of this contract and are not contractual. Vantage Meridian may vary them at its discretion.
- 11.3 You must complete any Client induction required for an assignment before starting on site.

12. Work health and safety

- 12.1 You must take reasonable care for your own health and safety and that of others affected by your work, comply with any reasonable instruction, policy or procedure relating to safety, and report hazards, incidents and injuries to Vantage Meridian and the Client promptly.
- 12.2 Vantage Meridian holds workers' compensation cover for its employees with WorkCover Queensland. You must report any work-related injury to Vantage Meridian as soon as practicable, whether it occurs at a Vantage Meridian or a Client location.

13. External work and conflict of interest

- 13.1 You must not, without Vantage Meridian's prior written consent, engage in or undertake work for any other person, firm or corporation, whether paid or unpaid, that could conflict with your duties or with the interests of Vantage Meridian or a Client.
- 13.2 Clause 13.1 applies at all times, including while you are on paid or unpaid leave.
- 13.3 You must declare to Vantage Meridian, at the earliest opportunity, any actual, potential or perceived conflict between your duties and your private interests, including any interest in or relationship with a Client, a competitor or a tenderer.

14. Confidentiality

- 14.1 You must not at any time, during your employment or after it ends, use or disclose Confidential Information except in the proper performance of your duties or where the law requires it.

- 14.2 Confidential Information includes Client material, tender and pricing information, the Vantage Meridian rate card, the terms of this contract and the rates paid to other practitioners.
- 14.3 Client material must stay on Client systems unless the Client has given written approval for it to be moved. You must not copy Client material to personal devices, personal storage or personal accounts.
- 14.4 Your obligations under this clause survive the end of your employment. On termination you must return all documents, devices, credentials and other material embodying Confidential Information.

15. Intellectual property and moral rights

- 15.1 All intellectual property rights in material you create in the course of your employment vest in Vantage Meridian on creation, or in the Client where the relevant Client contract or Engagement Schedule so requires.
- 15.2 You must do anything reasonably required to give effect to clause 15.1, including signing assignments and other documents.
- 15.3 You consent to acts or omissions by Vantage Meridian, its Clients, licensees and successors that would otherwise infringe your moral rights in material you create in the course of your employment.

16. Public comment and social media

- 16.1 You must not make public comment about Vantage Meridian, a Client or an engagement, including on social media, without Vantage Meridian's prior written approval.
- 16.2 You must not hold yourself out as representing Vantage Meridian or a Client except as your duties require.
- 16.3 After your employment ends you must not make adverse public comment about Vantage Meridian or a Client, and you must not represent yourself as associated with either.

17. Company and client property

- 17.1 Equipment, credentials and material provided to you by Vantage Meridian or a Client remain the property of the party that provided them and must be used only for the purposes of your duties.
- 17.2 You must return all such property promptly on request, at the end of an assignment or on termination of your employment, whichever comes first.

18. Surveillance and privacy

- 18.1 You consent to Vantage Meridian collecting, holding and using your personal information for employment administration, payroll, superannuation, insurance, compliance and placement purposes, and to its disclosure to Clients as reasonably required for tenders, onboarding and assignments, in accordance with the Privacy Act 1988 (Cth).
- 18.2 Client systems you are given access to may be subject to the Client's own workplace surveillance. Vantage Meridian will tell you what it is told about that surveillance, but the Client controls it.

19. Termination

- 19.1 After probation, either party may end the employment by giving written notice of the period required by the NES, or the period stated in the Engagement Schedule if longer. Vantage Meridian will also give any additional week of notice required by the NES for an employee over 45 years of age with at least 2 years of continuous service.
- 19.2 Vantage Meridian may pay you in lieu of all or part of the notice period, direct you not to attend work during the notice period, or direct you to perform alternative duties.
- 19.3 Vantage Meridian may end your employment without notice for serious misconduct, including conduct that puts the health or safety of another person at risk, a serious breach of confidentiality, theft, fraud or a breach of a Client's security requirements that causes the Client to withdraw your access.
- 19.4 On termination you must return all property under clause 17 and Vantage Meridian will pay you any accrued and untaken annual leave and any other amount owing under the NES.

20. Restraint and non-solicitation

- 20.1 During your employment and for the period stated in clause 20.2 afterwards, you must not, without Vantage Meridian's written consent, provide services of the kind you provided during your employment to a Client you worked with in the 12 months before your employment ended, whether directly, through your own company, through an agency or as an employee of another supplier.
- 20.2 The restraint period is _____ months.
- 20.3 During your employment and for 12 months afterwards, you must not solicit any practitioner in the Vantage Meridian network to leave or to decline an engagement with Vantage Meridian.

[TO BE SETTLED WITH A LAWYER] the restraint in clause 20.1 and 20.2 needs legal review before it is issued. A restraint is enforceable only so far as it protects a legitimate business interest and goes no further than reasonably necessary. Queensland does not read down an overbroad restraint the way New South Wales does, so an overreaching clause may fail entirely. Consider cascading periods and a client-specific rather than a general restraint.

21. Fair Work statements

- 21.1 Vantage Meridian will give you a copy of the Fair Work Information Statement before or as soon as practicable after you start. If Item 4 records fixed term employment, it will also give you the Fixed Term Contract Information Statement. Both are published by the Fair Work Ombudsman at fairwork.gov.au.

22. Disputes

- 22.1 If a dispute arises about this contract or the NES, you should raise it with Vantage Meridian in the first instance and the parties will try to resolve it by discussion. If it is not resolved, either party may refer it to the Fair Work Commission.

23. General

- 23.1 This contract, its schedules and any Engagement Schedule record the entire agreement between the parties about your employment and replace all prior offers, letters, understandings and representations.
- 23.2 This contract may be varied only in writing signed by both parties. Changes to your position, reporting line or location made under clause 3.3 are not variations of this contract.
- 23.3 If any provision is held to be invalid or unenforceable, it is severed and the remainder continues in force.
- 23.4 A failure to exercise a right is not a waiver of that right or of any other right.
- 23.5 This contract is governed by the law of the State in Item 10 and the parties submit to the jurisdiction of the courts of that State.

Execution

Executed as an agreement.

Signed for and on behalf of Lavelle Pty Ltd (ACN 651 199 414) trading as Vantage Meridian, ABN 27 651 199 414:

Signature: _____

Name: Sky Lavelle Office held: Director

Date: _____

Signed by the Employee:

Signature: _____

Name: _____

Date: _____

You will be taken to have accepted these terms if you start work for Vantage Meridian, even if you have not signed this contract.

Schedule 1 - Position Description

This Position Description forms part of the employment contract between Vantage Meridian and the Employee named in Item 2.

Position title	-----
Reports to	Sky Lavelle, Director and Principal
Location	-----
Employment type	-----
Purpose	-----

Key accountabilities

1. -----
2. -----
3. -----
4. -----
5. -----

Capabilities, qualifications and experience

1. -----
2. -----
3. -----

All employees are expected to work under the Vantage Meridian Delivery Framework, cooperate with reasonable safety instructions and take reasonable care for their own safety and that of others affected by their work.

Schedule 2 - Engagement Schedule

This Engagement Schedule is issued under and forms part of, the employment contract between Vantage Meridian and the Employee named below. A new Engagement Schedule is completed for each assignment or extension. It mirrors the Engagement Schedule used for contractors, so one placement process serves both pathways.

Engagement Schedule no.	_____ Date: _____
Employee	_____
Position	_____
Client and location	_____
Reporting manager (Client)	_____
Duties	As described in the role description agreed with the Client and as reasonably directed.
Assignment term	From ____ / ____ / _____ to ____ / ____ / _____ inclusive
Hours	38 hours per week within the Client's span of hours, unless otherwise stated here: _____
Timesheets	Weekly, submitted for Client approval by 5.00pm Friday in the system nominated for the assignment
Notice period for this assignment	4 weeks, unless otherwise stated here: _____
Intellectual property	Vests in Vantage Meridian, unless the Client contract requires it to vest in the Client: _____
Client conditions	Background checks, clearances and inductions required before start: _____

Signed for and on behalf of Lavelle Pty Ltd (ACN 651 199 414) trading as Vantage Meridian:

Signature: _____
Date: _____

Name: Sky Lavelle, Director

Signed by the Employee:

Signature: _____
_____ Date: _____

Name:

Drafting notes - remove before issuing

This page is not part of the contract. It records what still has to be settled and the obligations that sit outside the document.

Three clauses for a lawyer

1. **Clause 2.3, the fixed term exception.** Fixed term is capped at 2 years including extensions, one extension only. If the wrong exception is claimed the end date is void and the employment continues as ongoing.
2. **Clause 7, set-off.** The salary is meant to absorb award entitlements, which only works if the clause names them and the salary covers them in each pay period. An annualised salary under an award brings its own reconciliation obligations.
3. **Clause 20, restraint.** Queensland courts do not read down an overbroad restraint, so a clause that reaches too far may fail entirely. The period in clause 20.2 is blank on purpose.

Decisions for Sky, not the lawyer

- a. Whether ongoing or fixed term is the default for the first employee, and which exception applies if fixed term.
- b. Award coverage role by role. The Professional Employees Award 2020 reaches developers and testers more clearly than a project manager.
- c. The relationship between salary and the charge-out rates in the rate card. They are not the same number: salary carries superannuation, leave, payroll tax and workers' compensation on top.
- d. Whether to write a minimal policy set or delete clause 11. The contract currently refers to policies that do not exist yet.

Registrations triggered by employing someone

- a. **WorkCover Queensland** from the first employee. Clause 12.2 states the cover is held, so the policy has to exist before the contract is issued.
- b. **PAYG withholding and Single Touch Payroll** registration with the ATO.
- c. **Superannuation** at 12 per cent, with stapled fund lookups. From 1 July 2026 contributions are paid on the same day as salary under the Payday Super rules, not quarterly.
- d. **Professional indemnity and public liability** extended to cover employees, since an employee holds no policy of their own.
- e. **Queensland payroll tax** once total wages pass the threshold.

Figures for 2026-27 - they index annually, check at each offer

- a. Superannuation guarantee 12 per cent; maximum contribution base \$270,830 per annum.
- b. National minimum wage \$1,004.90 per week, \$26.44 per hour.
- c. High income threshold \$190,100 from 1 July 2026, up from \$183,100.